KELLY CASE TO JURY TODAY

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der. The state also introduced evidence in an attempt to prove that Kelly was a paranoiac. A sermon presented by the preacher to Dr. H. L. Houghton of Sioux City was also read by the attorey general for this purpose, and evidence was given by Dr. Max Witte of Clarinda and Dr. Boldeng of Woodward to the effect that such a man as Kelly might be a paranoiac. They testified that his being a paranoiac would not necessarily mean that he could not remember events in his past life.

J. T. Posten, Landers' brother-in-law, at whose restaurant he took supper the Sunday night of the murder, testified that Landers did not leave the restaurant until nearly 10:30 o'clock. Landers swore that he left about 8 o'clock. P. D. Minick, who lives near the Moore home, said he saw the Moores leave for church, but that he did not see Landers nor Jones at that time.

J. W. Atkins, deputy sheriff of Harrison county, was on the stand Thursday afternoon and said that Kelly, while at Logan, had given to him details of his trip back from Illinois with Sutton and Wilkerson to give himself up at Red Oak. He said that the preacher told him Sutton had said for him to come back and stand trial and then sue for damages later.

Atkins stated further that Kelly told him that at Alta Pass, Illinois, where Kelly was living, Wilkerson appeared and helped the minister pack his goods in a hurry; that Wilkerson represented himself to the agent to be F. F. Jones and sent the goods to O. C. Jackson at Kansas City; that when Kelly, his wife and Wilkerson arrived in Chicago the detective told Kelly they would stop at a hotel out in the suburbs so they would not be recognized by any one.

Testimony Ruled Out

The following account of the proceedings of the trial from Tuesday till Thursday afternoon is taken from the Red Oak Sun:

The defense began with the introduction of the testimony of Ed Landers, given at the first Kelly trial. The testimony was objected to by the state and an hour and a half were devoted to arguments to show the court regarding the admission of evidence tending to show that another man,and not Kelly, committed the crime. The jury was excluded from the room during the argument. Attorney Mitchell and Judge Sutton argued for the defense, and Attorney General Havner upheld the contention of the state. The argument included the testimony of the same lot of witnesses to which objections were offered at the previous trial. Judge Wheeler ruled that the testimony of Ed Landers was admissible, but that the testimony of Thorpe was not. At that time he stated that he believed the ruling of Judge Boies on that point was correct. The remainder of the morning was occupied with the reading of the Landers testimony.

Suggest Two Murderers

H. T. Thomas, Red Oak undertaker, testified Tuesday afternoon. He was a new witness for the defense, and in giving a description of the appearance of the bodies of the victims said one of the Moore boys had a wound over his right eye, and that the wound appeared to be an inch wide and two inches long. It appeared to have been inflicted by a blunt instrument. Mr. Wilkerson said it would be the contention of the defense that there were two or more murderers, one using the ax and the other a hatchet or other instrument.

Dr. Lomas, Dr. Williams, Mrs. E. N. Myers and Mrs. Ross Moore testified Tuesday afternoon regarding the spot on Lena Stlilinger's limb, which was used by the prosecution at the first trial.

John Denton, C. W. Wiggington, Milt Osler, Mac Maynes and W. V. Dinwiddie, all of Macedonia, were called to testify regarding conversations in Macedonia, their testimony being taken to discredit that of S. Barnett, who testified for the state.

O. E Jackson, Norwich, testified regarding his visit to Kelly while the latter was in jail in Sioux Falls.

Testimony of the following persons was read by the court reporter:

Margaret Landers, who said she saw two men about the Moore home Sunday preceding the murder and saw one of them try the edge of the ax.

Ves Cooney, who cleaned up the Moore home after the bodies had been removed.

L. Ponti, conductor of the train on which Mr. and Mrs. Simons testified they heard Kelly tell of the murder.

Louis and Henry Enarson, who told of Rev. Kelly's trip to Arlington on the Sunday preceding the murder.

Met Kelly at the Train

An entirely new story of Kelly's actions on the morning he arrived in Macedonia after his Villisca visit was given Tuesday afternoon by an entirely new witness, R. J. Harding, of Macedonia, one of the members of the Pottawattamie county board of supervisors, and the defense relies on it to make a strong impression with the jury. Mr. Harding said he met the early train on the morning of June 10, 1912, expecting to meet a man from Kansas, who was to look at his thoroughbred hogs. The man did not come, he said, but he saw Rev. Kelly get off the train. There were no blood spots on his hands nor clothing. In company with Rev. Kelly, witness said he walked to the Young grain office, across the viaduct, in the opposite direction from the implement store. From the grain office, witness said, Kelly went south in the direction of his home. Witness testified he saw Kelly several times that day. He saw Kelly open a letter in the post office that afternoon and heard him exclaim, "O God, Brother Dinwiddie, eight people were killed in Villisca last night. I was there and never heard it." In cross examination witness said he didn't remember seeing H. H. Bryant nor Grant Pilling at the station, but thought he saw Pilling and McCrady later. Couldn't remember of seeing Dr. Beesore. Saw Kelly next morning.

During the testimony of Mr. Harding Rev. Kelly was plainly pleased.

There was strenuous objection to the admission of the exclamation which witness said Kelly made when he opened the letter, and the court did not rule to let it in until Attorney Mitchell had first whispered it in his ear. He then ruled that it was admissible.

On Wednesday morning court opened with an argument on a motion by the state to strike that part of Mr. Harding's testimony which included the exclamation of Rev. Kelly when he opened the letter. Attorney General Havner and Attorney Mitchell spent an hour in the argument on this point, in the absence of the jury. The court ruled that the portion of the testimony should be stricken, and he explained so to the jury, cautioning them not to let the exclamation have any weight with them.

Kelly's Dentist Testified

A new witness Wednesday morning was Dr. W. W. Ward of Omaha, who fixed June 12 or 13, 1912, as one of the dates on which he did some dental work for Rev. Kelly. Others who testified during the morning session Wednesday were W. C. Ratcliff of Red Oak, Dr. and Mrs. W. J. Ewing and John Montgomery.

Direct evidence for the defense was concluded late Wednesday afternoon. Rev. West, now pastor the Emerson Presbyterian church, testified that Kelly visited at his home in Malvern when he made the trip to Omaha of which Dr. Ward had previously testified, and that he had no luggage at that time.

Mrs. Kelly, wife of the accused, testified as she had at the previous trial, that Rev. Kelly left Macedonia as he is claimed to have left for Villisca, that he had no extra clothing; that he returned Monday morning about 7 o'clock and came directly to their home remaining with her there until that afternoon. She said there were no blood stains on his clothing, and that he brought back just the articles which he had taken with him. Then she testified about Kelly giving himself up when he came to Red Oak last spring. The cross-examination of Mrs. Kelly by Attorney General Havner was long, and while there were many things she could not remember she did not vary at all from her original statements. She was excused and later recalled to tell Rev. Kelly's normal weight, which she gave as 120 pounds.

A. B. Wolfe, Villisca undertaker, testified regarding the stain on the Stillinger girl's body, and Dick Weidman told of having measured and weighed Rev. Kelly. His height was given as five feet, two and one-half inches, and his weight as 120 pounds.

Judge Sutton Testified

Judge sutton, one of the attorneys for the defense, took the stand to tell of his trip to Chicago to get Kelly at the time the latter gave himself up after waiting several hours to be put in jail. At this point the order of the United States District Court, at Sioux Flls, S. D., committing Rev. Kelly to the federal hospital for insane, was admitted as evidence, but not until after considerable argument. The transcript of the testimony at that hearing was also offered, but was not admitted. It was about this time that Kelly told his jailers of his alleged connection with the crime.

The Rebuttal Begun

As soon as the defense rested the state began taking testimony in rebuttal. They offered the minutes of the coroner's inquest to rebut the evidence of Ed Landers. The record was not admitted, but the three members of the coroner's jury testified in person. They said Landers testified at the inquest that he had seen no one around the Moore home the night of the murder. Dr. Lomas, J. Y. Wickersham and W. R. Finlayson composed the jury.

H. H. Bryant, Macedonia, was called to rebut the testimony of R. J. Harding. He said he was at the train in Macedonia and saw Kelly get off, but that he did not see Harding. W. C. Miller and A. R. Scott, both of Macedonia, testified regarding the distance between several points in Macedonia, their figures varying from those given the day before by Mr. Harding.

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PUBLIC SALE

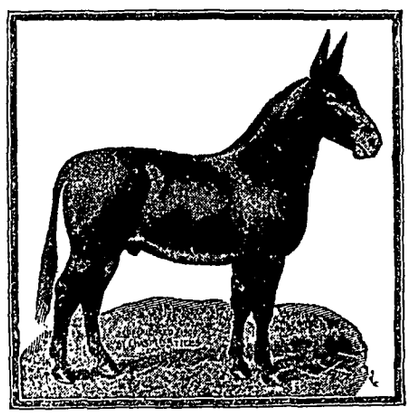
I will sell at my residence on the Dick Query Farm, 5 miles south of Nodaway or 8 miles southeast of Villisca or 9 miles southwest of Brooks or 4 miles north of Guss, Iowa, on the Nodaway and Guss Road, on

Thanksgiving Day, Thursday, November 29

Sale to commence at 1:30

We will not start the sale until time mentioned so as to give those wishing to have Thanksgiving dinner plenty of time to reach my place in due time for the sale.

250 -Head Good Stock- 250



- 14 - Horses, Mares and Mules



1 span of 4 year old bay and brown horse mules, weight 2500, well matched and good broke. 1 span of black mules, a horse and a mare, 5 and 6 years old, weight 2300 pounds, a nice pair. 1 bay 5 years old gelding, sound, weight 1600 lbs. 1 bay mare, 11 years old, weight 1600. 1 bay gelding, 9 years old, weight 1150. 1 bay gelding, 12 years old, weight 1200. 1 blind mare, a good worker. The last two mentioned are good workers for a cheap pair. I am going to sell them together with harness and wagon, a complete outfit. 3 suckling colts. 1 sorrel and white spotted saddle pony, 3 years old and will weigh 800 pounds. This is a nice fellow and will make a fine Christmas present for a boy. 1 bay mare, 9 yrs. old, wt. 1100.

100 - Extra Good Cattle - 100

12 head of hand-milked cows and heifers. One cow fresh, balance fresh in early spring, a lot of them giving a nice flow of milk. These cows are all young, ranging in age from 3 to 5 years. Eight head I have raised and broke myself. They are all Shorthorns and good quality. 8 head 3 years old Aberdeen Angus heifers.

20 head 3 years old Shorthorn heifers. These heifers are in good shape and bred to Shorthorn bull.

8 head of yearling heifers. 20 head of spring calves. 28 head of yearling steers.

BULLS—1 registered Shorthorn yearling bull. 1 registered Red Polled yearling bull. 1 big early February Hereford bull calf. 1 Aberdeen Angus February bull.

132 - Good Thrifty Hogs - 132

105 head of good thrifty spring shoats, some good breeding gilts among them. 25 fall pigs. 2 yearling Poland China boars.

SHEEP—3 head spring lambs. 2 bucks good enough for breeding purposes. 1 ewe lamb.

Farm Implements - Etc.

2 good farm wagons. 1 Peters corn planter with 100 rods of wire. 3 sets work harness. One saddle. Bob sled. Hog rack. Spring wagon.

TERMS—Tewlve months time will be given on good bankable notes drawing 8 per cent interest from date. Sums of $10 and under cash. All property must be settled for before removal.

J. H. Bogue will Serve Lunch Sale Day



Avery Lincoln, Owner

COL. WM. H. PIPER and COL. E. B. PIPER, Auctioneers. F. E. SHANE, Clerk.